

LOWELL POLICE DEPARTMENT

50 ARCAD DRIVE

LOWELL, MA 01852

CRIME/INCIDENT REPORT

(Print or Type only)

1 OF 1

[] Initial Report

[x] Follow Up Report

REPORT #

9314245

Crime or Incident Domestic Violence [] Code Date & Time Reported

Sudden Death

11/6/93 11:50A

Location of Crime or Incident (Street & Number) Geo Code Unit # Dist # Date & Time of Incident

1268 Appleton St REAR

11/6/93 0830

Weapon, Tool, Force or Means Used (Describe) Reporting Officers Badge #

Alcohol, Drugs ?

1 L. Hunter

12F

2 Lt. Busby

Victim (Firm Name if Business) Last, First, MI Sex Age Date of Birth

Wiemers, Gary

M

33

1/10/60

Address City State

Middlesex St. Shelton

Make Year Model Color Reg # State VIN

Solvability Factors:

Code

W	Is there a witness to the crime?	Yes [x]	No []
S	Is a suspect named?	Yes []	No [x]
SD	Can a suspect be described	Yes []	No [x]
SL	Can a suspect be located?	Yes []	No [x]
SV	Can a suspect vehicle be identified?	Yes []	No [x]
P	Is stolen property traceable?	Yes []	No [x]
PE	Is physical evidence present?	Yes []	No [x]
MO	Is there a distinguishable M.O.	Yes []	No [x]

Name

Newhall, Kenneth

Address

Middlesex St. Shelton

Phone

S Name Address D O B SS#

SD Race Age Ht. Wt. Build Hair Eyes Scars/Tattoos Clothing

SL Home Hangouts Work School

SV Make Year Model Color Reg # State VIN

P Item Model Serial Number Specific Physical Description

RECEIVED

NOV 6 / 1993

PE (Please describe in detail)

LOWELL POLICE DEPT.

MO

(Please describe in detail)

NARRATIVE-List additional witnesses, suspects, vehicles etc. Describe Briefly
(Use continuation Sheets if necessary)

While working The main desk on 11-6-93 at 9⁰⁰am I was informed by Sgt. W. Taylor that The victim's body was discovered by the witness in the rear of 291 Seaman St.

The Criminal Bureau (Capt. Sheridan + Insp. Tourgnant) were at the scene.

I was informed that The cause of death was possibly a drug / alcohol overdose and there was no sign of foul play.

At approx 9⁴⁴am I notified Trooper Joe Caplan from The Middlesex County S.A.'s office of the circumstances surrounding this sudden death.

From the start of our shift (9⁰⁰am) Lt. Cormier called The Medical Examiner's office 3 times and talked to Cathy. Cathy was unable to contact any of the Medical examiners. She told us they were probably out of the car and could not even estimate when she would be able to contact him.

After 3 hours Lt. Cormier ordered the body removed to McDonough's Funeral Home.

I was finally able to talk to Peter Burke from The Medical Examiner's office at 11⁴⁰am and inform him the body was removed to McDonough's Funeral Home.

Supervisor Approving Unit & Badge #

Sgt. Cormier 149

STATUS (CHECK ONE)

☐ Open ☐ Closed
☐ Unfounded
☐ Cleared by Arrest

Reviewer

COPIES TO:

MO (Please describe in detail)

NARRATIVE-List additional witnesses, suspects, vehicles etc. Describe Briefly
(Use continuation Sheets if necessary)

At 0830 I went to the rear of 268 Appleton which
abuts the rear of the unemployment office on Summer.
I retrieved Sgt. Wm. Taylor and [REDACTED] Dan Brady
who had discovered the body of a [REDACTED] old black male.

Present was a companion of the victim Mr. Newhall. I

Shortly after Off. Brady's departure Capt. Sheehan
arrived and viewed the scene. Capt. Sheehan then
dispatched Insp. Tausignant who arrived and photographed
the victim. He left shortly after w/ Mr. Newhall.

Lt. Busby was present w/ reporting officers until
McDonough's Funeral car arrived w/ Mr. Dennis Daley
to remove the body. I understand repeated attempts
to reach the M.E. were unsuccessful. Attempts were
made for three hours approx. 0830 until 1130 am without
success.

When assisting ~~the~~ with the removal it came to my
attention that a wallet was present in the coat of the
victim. Lt. Busby instructed me to retrieve same and
place it in an envelope, tagged ext. for the CIB.

I turned this over to Sgt. Chevelier @ the main desk.

Respectfully,

Off. L. Hunter # 125

Supervisor Approving Unit & Badge #

T. R. L.

STATUS (CHECK ONE)

☐ Open ☐ Closed
☐ Unfounded

Reviewer

COPIES TO:

DATE: 11-6-93

UNDERTAKER:

93-3665

REPORTED BY: Lowell Police

CLAIMANT:

TELEPHONE:

937 3212 - 3242

NAME: GARY WREMS

1-10-60

33

AGE:

B

RACE:

M

SEX:

ADDRESS: Middlesex shelter M. S. W. D.

PLACE OF DEATH: 291 SUMMER ST (REAR) Lowell

DATE OF ADMISSION:

DATE OF DEATH: 11-6-93

TIME OF ADMISSION:

TIME PRONOUNCED: 8 39 AM

RECEIVED BY:

DOA: YES/NO:

PRONOUNCED BY: EMTS Life Line

MEDICAL EXAMINER:

BODY BROUGHT BY:

TIME:

HISTORY OF TERMINAL EVENT:

TRAUMA: YES/NO DRUGS: YES/NO ALCOHOL: YES/NO DECOMPOSED YES/NO

DESCRIBE HOW DEATH OCCURRED: WHAT HAPPENED: WHO FOUND VICTIM: LOCATION: MEDICAL TREATMENT:
TRAUMA: LIST INJURIES: DATE OF INJURIES: TIME & PLACE OF INJURIES: LAST SEEN ALIVE:

DATE & TIME OF INJURY/ACCIDENT

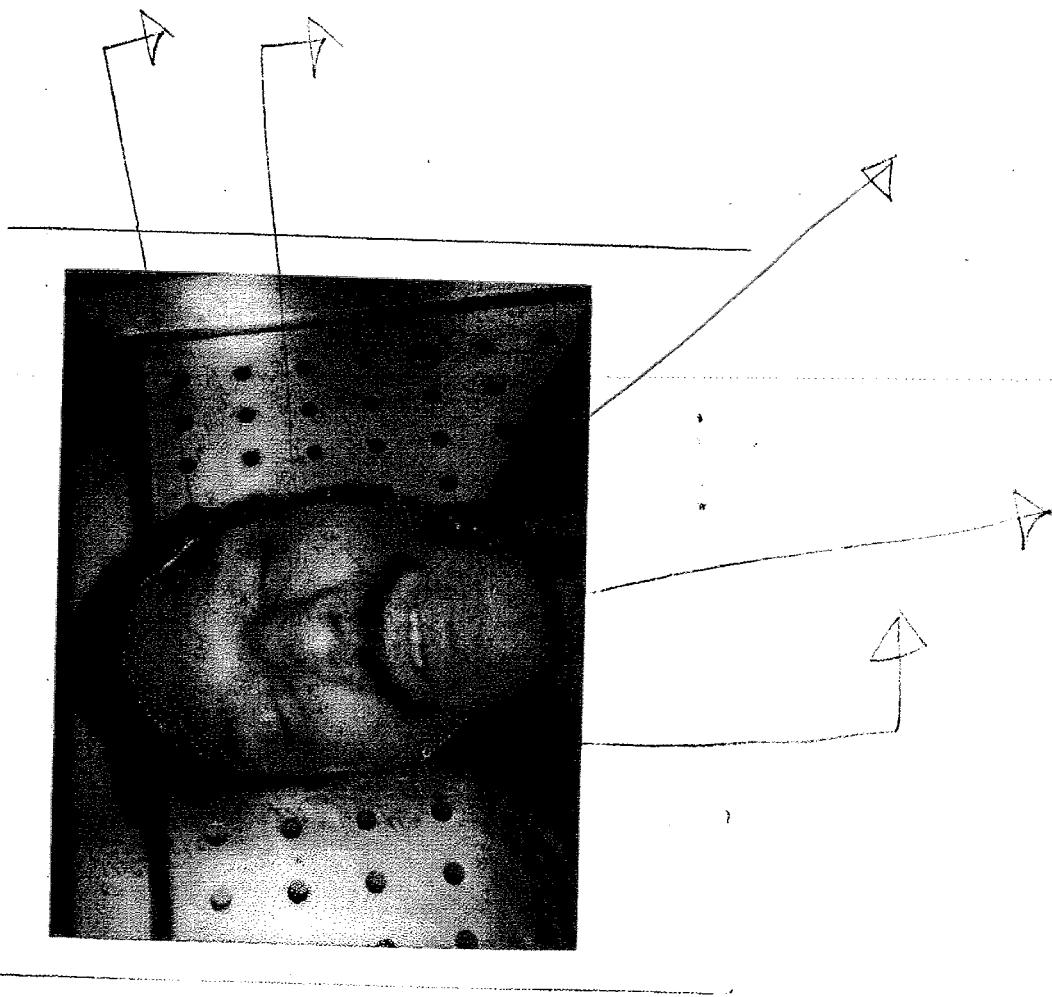
PLACE OF INJURY/ ACCIDENT

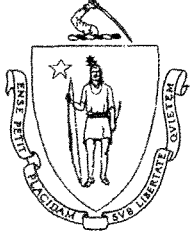
DRIVER: PASSENGER: PEDESTRIAN: UNKNOWN

SEAT BELTS YES/NO

Deceased had been DRINKING with a friend at the rear
of 291 SUMMER ST, Lowell. The friend LEFT FOR APPROXIMATE
FOUR hours. upon his return, Deceased WAS FOUND
UN RESPONSIVE. TRACK MARKS & ALCOHOL INVOLVED.

Why did they take
a picture of the
track marks.





Deval L. Patrick
Governor

Andrea J. Cabral
Secretary of Public Safety

The Commonwealth of Massachusetts **Office of the Chief Medical Examiner**

Headquarters



Henry M. Nields, MD, PhD
Chief Medical Examiner

General Office Numbers



July 11, 2014

Jestina Weems
549 4th Avenue
Brooklyn, NY 11215

Dear Ms. Weems:



As requested please find enclosed:

- ☒ Complete autopsy report
- ☒ Toxicology report
- ☐ Toxicology report only - no autopsy done

If you have any further questions, please do not hesitate to contact me.

Sincerely,

Lynda Powers
Administrative Assistant



OFFICE OF THE CHIEF MEDICAL EXAMINER

UNIVERSITY OF MASSACHUSETTS MEDICAL CENTER

55 LAKE AVENUE NORTH

WORCESTER, MASSACHUSETTS 01005

AUTOPSY REPORT

Case No. CME 93-3

Name Gary Weems Age 33 Race B Sex M

Homeless (Middlesex Shelter)

Date and Time of Death 11-6-93 8:39 AM

Date and Time of Autopsy 11-8-93 11:00 AM

Medical Examiner Feigin

County and District Middlesex

CAUSE OF DEATH: Opiate intoxication

MANNER OF DEATH:

☐ Natural

☐ Accident

☐ Suicide

☐ Homicide

☒ Undetermined

Pathologist Gerald Feigin

Tewksbury Hospital

Address 365 East St., Tewksbury, MA

PAGE 2

AUTOPSY

The autopsy was performed at Tewksbury Hospital, Tewksbury, MA on November 8, 1993 at 11:00 AM with the assistance of Edward Doyon.

Identification: Made by shelter personnel. *Then why not put the shelter's address on the death cert?*
Statement from Hall away
 Clothing: The body is received with brown jacket, T-shirt, briefs, sweatpants, and black high top athletic shoes.

EXTERNAL EXAMINATION

190 lbs
 The body is that of a dark-skinned male measuring 73 inches and weighing an estimated 190 lbs. There is full rigor and lividity is present posteriorly. The hair is dark and short. The face has no marks of injury. There is a 1 inch scar over the lateral upper orbital ridge on the left. The eyes have brown irides, 5 mm pupils, and clear conjunctivae. There is a mustache present. The teeth are natural and there is no trauma to the mouth. The neck, chest, abdomen, lower extremities, back and buttocks are free of change. There needle tracts present in the left antecubital fossa. The penis is circumcised and testes are present within the scrotum.

INTERNAL EXAMINATION

The body is opened with a Y-shaped incision revealing a 1 inch panniculus. All of the cavities are dry and lined by smooth fibromembranous tissue, without old or recent inflammatory process. The mediastinum and retroperitoneum are free of change.

Cardiovascular system: The heart weighs 380 grams. The epicardial surface is smooth. The left anterior descending coronary artery is 75% obstructed, 1.5 cm from the origin. The circumflex and right are free of change. The valves are thin and delicate and the myocardium is red brown, without hemorrhage, softening or fibrosis. The aorta and major arteries are intact and free of atherosclerosis. The veins are free of thrombi and emboli.

Respiratory system: The right lung weighs 870 grams. The left 820 grams. The pleura is dark purple. The parenchyma is edematous and congested, without tumor, fibrosis or consolidation noted. The tracheobronchial tree is unobstructed and lined by tan mucosa. The neck organs are free of trauma.

Digestive system: The tongue is left in-situ. The esophagus is lined by gray, granular mucosa. The stomach contains 100 cc of clear liquid. The mucosa and wall are free of change. The small and large intestine, anus, rectum and appendix are unremarkable. The liver weighs 1,610 grams. The capsule is intact and the parenchyma is brown and of normal consistency. The gallbladder contains 5 cc of bile. No stones are present. The pancreas and submandibular glands are tan and lobular.

3665

Lymphoreticular system: The thymus is small and tan. The spleen weighs 230 grams. The capsule is intact and the parenchyma is free of change. Lymph node enlargement is not noted. There is a 1 cm, accessory spleen present.

Endocrine system: The pituitary is of normal size, and left in-situ. The adrenals are of normal size, have thin yellow cortices, and gray medullae. The thyroid contains a moderate amount of colloid and is of normal size, shape and consistency.

Urogenital system: The combined weight of the kidneys is 310 grams. The cortical surfaces are smooth. The medullary pyramids are pointed. The calyces, pelves, and ureters are free of change. The bladder is contains 200 cc of urine. The mucosa and wall are free of change. The prostate is rubbery and of normal size. The testes are left in-situ.

Musculoskeletal system: The muscles are red brown and firm. No fractures are noted.

Central nervous system: The scalp, skull, dura, leptomeninges, and cortical surface of the 1,200 gram brain show no evidence of trauma. Cut section reveals no abnormalities within the cerebral hemispheres, pons, cerebellum, midbrain or medulla.

GF/drh
12/4/93

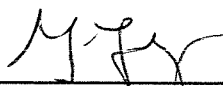
→ The photo is a picture taken on the
6th, Reported by Lowell police

HISTORY

The decedent was a 33 year old male who had been drinking with a friend in Lowell. He was found approximately 4 hours later unresponsive in his friends yard.

OPINION

The decedent died of opiate intoxication. The manner of death is undetermined.



Gerald Feigin, M.D.
Forensic Pathologist

GF/drh
12/4/93



WILLIAM F. WELD
GOVERNOR

THOMAS C. RAPONE
SECRETARY

CHARLES F. HENDERSON
COLONEL

The Commonwealth of Massachusetts

Department of State Police

Crime Laboratory

1010 Commonwealth Avenue

How (617) 566-2833
TOXICOLOGY REPORT

NAME OF VICTIM: WEEMS, GARY

DATE OF REPORT: 11/22/93

LABORATORY NO.: T93-2962

MEDICAL NO.: 93-3665

SUBMITTED BY: FEIGIN

DATE SUBMITTED: 11/09/93

RESULTS OF EXAMINATION:

Blood Ethanol: .002% (WGH)

Barbiturates Screen: negative (DMP)

Cocaine Metabolite Screen: positive (DMP)

Methamphetamine Screen: negative (DMP)

Morphine Screen: positive (DMP)

Benzoyllecgonine: 100 ug/dL (WGH)

Cocaine: none detected (limit of detection 20 ug/dL) (WGH)

Morphine: 4.0 ug/dL (WGH)

Codeine: detected, less than 1.0 ug/dL (WGH)

0.01 mg

0.002 mg

0.0004 mg

0.0001 mg

UG = 1000 to

William G. Hebard 12/1/93
CHEMIST DATE SIGNED

REPORT DIRECTED TO: FEIGIN

ALL SAMPLES, INCLUDING DRUGS AND PARAPHERNALIA WILL BE DISPOSED OF 60 DAYS AFTER DATE OF REPORT, UNLESS WRITTEN REQUEST FOR RETURN OF SAMPLES IS RECEIVED.

noted at inquest

10/17/90
p. 30

By Toni Locy
GLOBE STAFF

Three police officers testifying yesterday at an inquest into the February death of a Dorchester woman said they noticed injuries on her face, some of which were not mentioned in an autopsy report by the Suffolk County medical examiner's office, the Globe has been told.

The inquest, a closed hearing that is expected to last all week, was requested by District Attorney Newman Flanagan after a June 3 Boston Globe report on the case involving the death of Kasha Blount, a 19-year-old pregnant woman. The Globe reported that police and officials in the medical examiner's office said in interviews that they had been waiting for their counterparts to provide answers about Blount's death, despite their strong suspicions of foul play.

The officers, testifying before Judge Gerald Alch in Dorchester District Court, were among the first people to arrive at Bernard Street in St. Mary's Cemetery early on Feb. 17, finding Blount's fully clothed body lying face up on the ground, according to a police report.

The Globe was told that one officer testified yesterday that he had noticed dried blood on Blount's nose, another officer said one side of her head appeared to have been swollen and a third recalled that Blount's left eye was swollen and looked as if it had been bleeding.

The autopsy report, a copy of which was obtained by the Globe, did not mention any swelling on the head or blood coming from Blount's left eye. The report, however, noted "a scant amount of blood present on the upper forehead and left temple" and "abundant froth" coming from Blount's nose.

Once the inquest is completed, Alch will prepare a report detailing his findings and any recommendations about how the case should be handled, including whether any

criminal charges should be filed. The report will be submitted to the district attorney.

Blount, who lived with her mother, was last seen alive Feb. 16 leaving work at a Dedham clothing store where she was a sales clerk. Blount, who was six months' pregnant, told a co-worker she was meeting the baby's father to shop for toys after work.

Fourteen hours later, Blount's body was found in the cemetery.

Dr. Gerald Feigin, an associate medical examiner, has said he could not determine with certainty how Blount died and could not rule that her death was a homicide.

Feigin, who insists that he conducted every possible test to determine how Blount died, said he thinks it is up to police to find a witness who can help solve the case.

The police said they originally treated the case as a "sudden death" and were waiting for the medical examiner's office to rule Blount's death a homicide before launching a full-scale investigation.

Blount's mother, Phyllis Johnson, 39, has said that she believes the police and medical examiner's office did not put a high priority on investigating her daughter's death because they viewed her as "just another" black child and that all black children are on drugs.

The medical examiner's office allowed Blount's body to be cremated before forensic tests had been returned from a laboratory. Officials defended the decision, saying they had taken all the tissue and blood samples they needed.

All of the tests came back negative for drugs and poisons, they said. Yesterday, seven witnesses, mostly police officers, were observed entering the courtroom to testify at the inquest, which is closed to the public.

Alch allowed lawyer Margaret A. Burnham, who represents David James, Blount's former boyfriend, to question witnesses.

OCT

1

7

STAFF FILE PHOTO
Boston na-
Seminary.

and rector in
remain in his
his installa-
new diocese,
square miles,
at half the
chdiocese.

nse

Barbara S.
very small
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Bolling's re-
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